



P & S Department
SIMHADRI

Note No :1



Ref:SMTPP/P & S/2023-24/P&SLMI/300955

Date:17/07/2023(09:27:41)

Subject:Approval of LMI on Compliance with legal & Other requirements

Sub:Approval of LMI on **Compliance with legal & Other requirements**.

The LMI on **Compliance with legal & Other requirements** ref no- LMI- COS-ISO-00-OGN/OPS/SYST/051 ,REVISION NO. 1 is reviewed and no changes are incorporated in the LMI.

This supercedes LMI- COS-ISO-00-OGN/OPS/SYST/051 dtd June 2021.

The LMI is attached for reference.

Put up for approval of HOP Simhadri please.

Submitted by:

सुस्मिता भट्टाचारजा - विरष्ठ प्रबंधक

SUSMITA BHATTACHARJEE - 102449 (SENIOR MANAGER ,P & S) ,Simhadri
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On:17/07/2023(09:27:41) **Ref:**SMTPP/P & S/2023-24/P&SLMI/300955

Note No:2

The LMI has been checked.

As per LMI Clause 5.0,

" HOP shall nominate one role who shall be accountable to ensure that consolidated legal register is maintained and updated: to ensure that formal reviews/audits are conducted to identify legal non-compliances, to ensure such findings are included in periodic reports and included in the review by the HOP"

As per LMI Clause 6.2,

"Legal Register is a master register of legal and other requirements, shall be approved by the HOP and maintained by the person nominated by the HOP, with inputs from other functions".

In view of the above, it is proposed that Law officer, Sh Dharmendra Singh, Sr. Mgr. (HR) may be appointed as role for maintaining of legal register and as single point custodian of LMI.

Submitted for kind approval.

Submitted by:

फिलिप्स पी थॉमस - उप महाप्रबंधक

Philips P Thomas - 008090 (DY. GENERAL MANAGER ,P & S)

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On:17/07/2023(10:07:10) **Ref:**SMTTPP/P & S/2023-24/P&SLMI/300955

Note No:3

Submitted for approval.

Submitted by:

अर्जुन प्रदीप नायर - अपर महाप्रबंधक

Arjun Pradeep Nair - 004419 (ADDL. GENERAL MANAGER ,TECH SERVICES)
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On:17/07/2023(11:40:34) **Ref:**SMTTP/P & S/2023-24/P&SLMI/300955

Note No:4

Submitted for kind approval.

Submitted by:

एस पद्मिप्रय - महाप्रबंधक

S Padmapriya - 004521 (GENERAL MANAGER ,TECH SERVICES)
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On:17/07/2023(12:00:20) **Ref:**SMTTP/P & S/2023-24/P&SLMI/300955

Note No:5

Pl look into the matter and pocess

Submitted by:

संजय कुमार िसन्हा - महाप्रबंधक

Sanjay Kumar Sinha - 005185 (GENERAL MANAGER ,HEAD OF PROJECT)
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On:18/07/2023(11:23:49) **Ref:**SMTTPP/P & S/2023-24/P&SLMI/300955

Note No:6

Examined.

Competent authority may kindly approve the appointment as per proposal.

Submitted by:

रूमा डे शर्मा - अपर महाप्रबंधक

Ruma De Sharma - 006923 (ADDL. GENERAL MANAGER ,HR)
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On:21/07/2023(10:49:54) **Ref:**SMTTPP/P & S/2023-24/P&SLMI/300955

Note No:7

Approved & Submitted by:

संजय कुमार िसन्हा - महाप्रबंधक

Sanjay Kumar Sinha - 005185 (GENERAL MANAGER ,HEAD OF PROJECT)
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On:25/07/2023(13:20:55) **Ref:**SMTPP/P & S/2023-24/P&SLMI/300955

NTPC Limited

SIMHADRI SUPER THERMAL POWER PROJECT

LOCATION MANAGEMENT INSTRUCTION

LMI- COS-ISO-00-OGN/OPS/SYST/051

Rev. No.: 1, JULY 2023

Compliance with Legal & Other Requirement

Approved for implementation by **Sanjay Kumar Sinha, GGM-Simhadri**

Date :17.07.2023

LMI APPROVAL DOCUMENTS

1.0 TITLE OF LMI	Compliance with Legal & Other Requirements
2. REF. DOCUMENT CODE	LMI/OGN/OPS/SYST/051 REV -0 ; Dated: APRIL'2021
3. LMI REVISION NO.& DATE	REV-1; JULY '2023
4. PREPARED BY:	Susmita Bhattacharjee, Sr.Manager(P&S)
6. CHECKED BY	Philips P.Thomas, DGM(P&S) Arjun P.Nair, AGM(TS)
7. REVIEWED BY:	S.Padmapriya, GM(TS)
8. REVIEWED AND APPROVED BY	Sanjay Kumar Sinha, HOP-SIMHADRI

NTPC		LMI		SIMHADRI	
TITLE: COMPLIANCE WITH LEGAL & OTHER REQUIREMENT					
REV: 1 DATE: JULY, 2023					
REF: LMI/OGN/OPS/SYST/051					
SL.No	Particulars				Page No.
1.0	Scope				1
2.0	Superseded documents				1
3.0	Revision details				1
4.0	Introduction				1
5.0	Roles & Accountability				2
6.0	System for legal & other requirements				2-4
7.0	Audit				4
8.0	Records				5
9.0	Review				5
	Annexure-1 : The legal & other requirements.				

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1.0 SCOPE/INTRODUCTION:

This LMI provides guidance on identifying, achieving and maintaining compliance with all legal, regulatory or other voluntary requirements the project need to subscribe to.

The legal & other requirements given as Annexures-1. It is station specific

2.0 SUPERSEDED DOCUMENTS: REF: NA

3.0 REVISION: 01

4.0 INTRODUCTION:

NTPC has made a policy commitment to compliance with applicable legal and other safety and occupational health requirements that relates to its activities.

These legal requirements can take many forms, such as legislation including statutes, regulations, codes of practice, decrees and directives orders issued by regulatory agencies, permits, licenses or other forms of authorization, judgements of courts or administrative tribunals, treaties and conventions protocols.

Depending on circumstances and needs the station to subscribe voluntarily to requirements, other than legal requirements, that relate to health & safety hazards. Such other requirements can include contractual conditions, agreements with interested parties, agreements with health authorities, non-regulatory guidelines, voluntary principles, best practices or codes of practice, charters, public commitments of the station and corporate/company requirements.

Some of these commitments or agreements may address a range of issues in addition to health and safety matters. This LMI refers only to such commitments or agreements to the extent that they relate or affect the station health & safety hazards.

To ensure that the station meets its policy commitments, a structured approach is required to ensure that the legal and other requirements are identified, evaluated for applicability, be accessed, communicated, kept up to date and compiled with.

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5.0 ROLES & ACCOUNTABILITY:

HOP is accountable to ensure all applicable legal permits / consents / documents are kept valid and available. HOP shall keep the management apprised of any non-compliance periodically.

HOP shall be accountable to ensure all employees should be made aware of legal requirements for their roles and the consequences of non-compliance.

HOP shall be responsible to organize for maintaining a register of legal and other requirements and its periodic updating.

HODs are responsible for maintaining compliances to legal and other health & safety related requirements and are accountable for any non-compliance with such requirements.

HOP shall nominate one role who shall be accountable to ensure that consolidated legal register is maintained and updated; to ensure that formal reviews/audits are conducted to identify legal non-compliances, to ensure such findings are included in periodic reports and included in the review by the HOP.

Human Resources function shall be responsible to ensure that all employees in the project are covered in the legal and other requirements awareness training program, in co-ordination with Site Safety coordinator at least once in a year.

6.0 SYSTEM FOR LEGAL & OTHER REQUIREMENTS.

6.1 Identification of Legal & Other Requirements

The station will identify and document the applicable legal and other occupational health and safety requirements that are applicable to it. Such identification can be carried out internally or outsourced to specialist third-parties. There is no requirement to maintain a library, it is sufficient that the station be able to access the information when needed.

Documentation can be preferably electronic or as a hard copy. When maintained electronically, access controls should be established to ensure editing be restricted for designated roles only with version trail maintained for audit purposes.

HOD's should have ready access to copies of all acts / rules that are applicable to their respective functional activities, such copies can be printed or electronic.

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6.2 Legal Register

Legal Register is a master register of legal and other requirements, shall be approved by the HOP and maintained by the person nominated by the HOP, with inputs from other functions as electronic or hard copy.

The Legal Register should contain at the minimum, the following

- Articles/clauses of relevant acts / rules / regulations applicable to the station.
- Norms prescribed in acts / rules / regulations & station's threshold limits.
- Statutory records to be maintained if any and their location.
- Permits / consents required and conditions stipulated in the consents with status.
- List of reports to be sent to various statutory bodies with the last sent dates.
- Specific requirements/control for health & safety imposed by Central or State governments.
- Any other codes & practices for health and safety being followed by the station.

Concerned HOD shall periodically (at least quarterly) update compliance status of the legal & other requirements and shall communicate the same to the person nominated by the HOP for updating the Legal Register and maintain it in a central database.

Legal Licenses & other requirements list is given in Annexure-1.

6.3 Linking Risk Assessments with Legal & Other Requirements.

The station to ensure that these legal and other requirements from the legal register are considered while evaluating health & safety risks by linking such requirements with identified health & safety hazards/risks. Non-compliance with legal and other requirements shall be considered as a major and unacceptable risk.

6.4 Achievement of legal & other compliances

All levels of management shall identify legal requirements relevant to their respective responsibilities and accountabilities. HOP shall designate HODs for relevant legal and other requirements and such designated HOD's shall maintain all compliances as given in Annexure-1.

All applicable legal permits / documents shall be kept valid and available.

HODs shall ensure validation of compliance with applicable legal and other requirements. HODs shall keep the person appointed by the HOP informed periodically of the status of such compliances. The person appointed by the HOP shall ensure that compliance statuses are updated in the Legal Register and included in HOP periodic reports. Any non-compliance shall be immediately informed to the HOP and actioned

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6.5 Updating Requirements:

The Station shall keep its Legal Register on legal and other requirements up-to-date. Such updation can be carried out internally or outsourced to specialist third-parties. In an audit or assessment, the project should be able to demonstrate that it can access the updated information when needed. The person nominated by the HOP acts as the single-point custodian for this purpose.

The person nominated by the HOP shall review the legal register and list of legal and other requirements for its adequacy and completeness and to ensure that it is current, at least on a half-yearly basis, or as and when information is received on new and or changed legislation, regulation, notification and or directions by regional/corporate office.

6.6 Communication & Awareness:

The station shall communicate relevant information on legal and other requirements to employees and other persons working under the control of the project, and other relevant interested parties.

When there is significant change in legal or other requirements, the HOP should include the significance of the change, when relevant in his periodic reports.

All employees should be made aware of legal requirements relevant to their respective roles, and the consequences of non-compliance. Station to establish a system to provide the employees with access to relevant current legislation.

Human Resources Function shall be responsible to ensure that all employees in the station are covered in the legal and other requirements awareness training programs, at least once a year. Site Safety Coordinator shall include in periodic reports the % of staff trained on awareness on Legal & other requirements.

Records shall be maintained of such training by the Human Resources Function.

7.0 AUDIT

7.1 Evaluation of Compliance

It is critical that station identify potential legal non-compliance as early as practicable. As part of the project's commitment to compliance, formal assessments/audits should be conducted periodically. Compliance evaluation audits and assessments of legal and other requirements should have a schedule indicating their frequency.

These compliance evaluation assessments/audits can be included as part of other compliance audits or assessments like technical compliance audits. But, it is to be ensured that all legal and other requirements shall be assessed / audited at a frequency that is at least equal to, if not better than that required by the relevant legislation or other requirements.

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In an audit or assessment, the station should be able to demonstrate that, it is fully compliant with legal and other health & safety requirements, that it can access the relevant legal and other requirements, that the station's staff is aware of their responsibilities as defined under legal and other requirements and that information is being updated regularly. The person appointed by the HOP for the purpose, acts as the single-point custodian for demonstrating these compliances

7.2 Corrective Action

Non-compliances to legal requirements are always major non-compliances and are to be included in the HOP's periodic reports. The HOP shall also include in his periodic reports the % of non-conformities identified during the evaluation process that have been acted upon and closed.

8.0 RECORDS

Legal Register with status of required and applicable compliances to be consolidated (from respective departments that are directly responsible to demonstrate compliance) and maintained as a single-point reference by the person appointed by the HOP for the purpose.

Records of the results of the periodic evaluations shall be maintained by the human resources function with corrective actions taken to close non-compliances, if any.

Records of training of employees on awareness of legal requirements shall be maintained by the project Human Resources function and be accessible to the Site Safety Coordinator for demonstrating compliance.

9.0 REVIEW

The HOP shall review this LMI every two years basis.

Annexure-1

List of Statutory Licenses& other requirements for Simhadri Station.

SI NO	Statutory License description	Responsibility	Remarks/ License validity up to
1	Boiler Unit 1 (Registry AP-3618)	HOD(BMD)	
2	Boiler Unit 2 (Registry AP-3619)	HOD(BMD)	
3	Boiler Unit 3 (Registry AP-5138)	HOD(BMD)	
4	Boiler Unit 4 (Registry AP-5218)	HOD(BMD)	
5	Compressed Chlorine Storage	HOD (CHEMISTRY)	
7	Storage of Compressed Gas Cylinders	HOD(STORES)	
8	Fuel Oil Storage	HOD(OPERATION)	
9	Hydrogen Generation and storage	HOD(EMD)	
10	Factory License	HOD(HR)	
11	Air Consent	HOD(EMG)	
12	Water Consent	HOD(EMG)	
13	Hazardous Waste	HOD(EMG)	
14	Biomedical Waste	HOD(EMG)	
15	Storage of Ammonia	HOD(OPERATION)	
16	Diesel storage at MGR license	HOD(STORES)	
17	CEA electrical installations	HOD(EMD)	
18	ISO 45001:2018	HOD(HR), HOD(BE) & HOD(SAFETY)	

ANNEXURE 1 - LEGAL REGISTER

**NEW CODES CONSOLIDATING SEVERAL PRESENT LAWS UNDER
OCCUPATIONAL SAFETY, HEALTH AND WORKING CONDITIONS; INDUSTRIAL
RELATIONS & SOCIAL SECURITY ARE UNDER APPROVAL BY THE
GOVERNMENT**

LIST OF LEGAL REQUIREMENTS			
SINo	Name of Legal Requirement	Rev No	Date
1	The Factories Act 1948 (Amended 2010) State Factories rules		
2	The Electricity Act, 2003 (replaces The Indian Electricity Act, 1910) The Indian Electricity Rules, 1956. State Electricity Rules		
3	Indian Boiler Act 1923 and regulations 1950, amended 2007		
4	The Environment Protection Act, 1986, amended in 1991		
5	The Hazardous wastes Management and Transboundary) Rules, 2016		
6	The Bio-Medical Waste Management Rules, 2016		
7	E- Waste Management Rules 2016		
8	Solid Waste Management Rules 2016		
9	The Batteries (Management & Handling) Rules, 2001.		
10	The Noise Pollution (Regulation & Control) Rules, 2000 amended 2010)		
11	The Air (Prevention & Control of Pollution) Act,1981 (amended 1988)		
12	The Water (Prevention & Control of Pollution) Act, 1974 (amended 1998) The Water (Prevention & Control of Pollution) Rules, 1975.		

13	The Public Liability Insurance Act 1991 (amended 1992) The Public Liability Insurance Rules 1991 (amended 1993)		
14	The Dangerous Machines (Regulation) Act 1983 – enacted		
15	The atomic energy act 1962 (amended 1987) The Atomic Energy (Factories) Rules, 1996.		
16	The Petroleum Act 1934 The Petroleum Rules 2002		
17	The Static and Mobile Pressure Vessels (unfired) Rules 1981 (amended 2002)		
18	The Employees' State Insurance Act, 1948 (amended 2010)		
19	The Contract Labor (Regulation and Abolition) Act, 1970		
20	Maternity Benefit Act, 1961		
21	The Industrial Disputes Act, 1947		
22	The Payment of Wages Act, 1936		
23	The Industrial Employment (Standing Orders) Act, 1946		
24	The Minimum Wages Act, 1948		
25	The Payment of Gratuity Act, 1972		
26	The Apprentices Act, 1961 along with Rules 1991 and Central Apprenticeship Council Rules, 1962		
27	The Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ("POSH Act")		
28	Right to Information Act, 2005		
29	Employment Exchange (Compulsory Notification of Vacancies) Act, 1959 with Rules		
30	S.Cs and STs (Prevention of Atrocities) Act, 1989		
31	Child Labour (Prohibition & Regulation) Act, 1986		

32	Employees Provident Fund and Miscellaneous Provisions) Act, 1952		
33	Weekly Holidays Act, 1942		
34	Trade Unions Act, 1926		
35	Building & Other construction Workers (Regulation of employment and conditions of Service) Act, 1996		
36	Right to Information Act, 2005		
37	Information Technology Act		
38	Motor Vehicles Act 1988		
39	Explosives Act, 1884		
40	Fatal Accidents Act, 1948		
41	Contract Act, 1872		
42	Standards of Weights and Measures Act, 1976		